

24STCV18864 24STCV18864

County: los-angeles

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Case Number: 24STCV18864 Hearing Date: August 19, 2026 Dept: 406

KARLA LEIVA,

Plaintiff,

v.

AIDS HEALTHCARE

FOUNDATION,

Defendant.

Case No.: 24STCV18864

Hearing Date: August 19, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further
responses

BACKGROUND

On July 26, 2024, Plaintiff Karla

Leiva filed this action against Defendant Aids Healthcare Foundation for
employment discrimination and retaliation. Plaintiff alleges that she was

terminated while on disability leave after protesting and reporting Defendant's
illegal activities, including unsafe or uninhabitable conditions.

On July 22, 2026, Plaintiff filed the instant motion to compel further responses to special interrogatories set two. Defendant filed an opposition on August 6, 2026. Plaintiff filed a reply on August 12, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

The motion concerns SROG Nos. 39, 40, 41, 42, 43, 44, and 46. In response to each SROG, Defendant invoked Code of Civil Procedure section 2030.230 and listed bates numbers or exhibits, and did not otherwise provide substantive information. Section 2030.230 provides:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.

(Code Civ. Proc., § 2030.230.)

Defendant has not shown that the

SROGs “necessitate the preparation or the making of a compilation, abstract, audit, or summary” or that the burden of doing so would be “substantially the same” for Plaintiff and Defendant. Each SROG asks discrete, straightforward questions that can be answered in writing. Section 2030.230 is not triggered just because the information is found in documents. Defendant is naturally required to examine sources under its control, including documents, in responding to interrogatories.

Defendant argues that its reference to documents is proper because the SROGs seek the same information previously sought in RFPs, and therefore Defendant may reference those productions. However, even Defendant’s own separate statement shows that the prior RFPs are facially distinct from the SROGs currently at issue.

Moreover, Defendant’s responses to the SROGs cite wholesale exhibits or hundreds of bates numbers, many containing nonresponsive information. Thus, Defendant has failed to “specify the writings from which the answer may be derived or ascertained” or provide “sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.” In sum, Defendant must provide substantive responses to the subject SROGs.

Sanctions are warranted as Defendant provides no substantial justification for its noncompliant responses. Plaintiff requests \$4,250 (\$425 x 10 hrs.). The Court awards \$1,700 (\$425 x 4 hrs.).

CONCLUSION

Plaintiff’s motion to compel further responses is GRANTED. Defendant shall provide further responses to SROG Nos. 39, 40, 41, 42, 43, 44, and 46 within 20 days of today. The Court sanctions Defendant and its counsel, jointly and severally, in the amount of \$1,700, to be paid within 30 days of today.